

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF GASKAROV AND OTHERS v. RUSSIA

(Applications nos. 10921/20 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

9 February 2023

This judgment is final but it may be subject to editorial revision.



In the case of Gaskarov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 January 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention.

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57,

20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, including having studied the compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question and concluded that it should be exceptionally considered to have been suspended for three calendar months in total whenever it either started to run or was due to expire at any time between 16 March and 15 June 2020), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, as regards disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest.

IV. REMAINING COMPLAINTS

11. In applications nos. 52302/20, 52305/20 and 52307/20, the applicants also raised other complaints under Article 5 of the Convention.

12. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention.

It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

13. As regards the complaints under Article 6 of the Convention about unfairness of proceedings, submitted by some of the applicants, the Court, having reached the conclusion about the lack of impartiality of the tribunal under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine separately further complaints about unfair administrative-offence proceedings raised by some of the applicants under Article 6 of the Convention, and *dismisses* the remainder of applications nos. 52302/20, 52305/20 and 52307/20 as inadmissible;

3. *Holds* that these complaints disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 February 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	10921/20 19/02/2020	**Aleksey Vladimirovich GASKAROV** 1985	Sidorkina Svetlana Ivanovna Moscow	fine of RUB 10,000	30/08/2019 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 30/08/2019 (appeal decision).	3,900
2.	12419/20 22/02/2020	**Georgiy Anzorovich DARASELIYA** 1986	Glukhov Aleksey Vladimirovich Novocheboksarsk	fine of RUB 10,000	26/08/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 12/06/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; arrested at 15:00, released at 20:20 on 12/06/2019. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/administrative fine of RUB 10,000/ Moscow City Court on 26/08/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	12472/20 18/02/2020	**Lyubov Valeryevna LUKASHENKO** 1995	Sergeyeva Irina Vadimovna Moscow	fine of RUB 10,000	20/08/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest and escorting to the police station on 12/06/2019 in excess of 3 hours; arrested at 13:53, released at 21:56 on 12/06/2019. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 20/08/2019 (appeal decision).	3,900
4.	12687/20 28/02/2020	**Nataliya Mikhaylovna SEKRETAREVA** 1992		fine of RUB 10,000	28/08/2019 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 28/08/2019 (appeal decision).	3,900
5.	26794/20 02/04/2020	**Bogdan Sergeyevich DIYUK** 1992	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	08/10/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 10/08/2019 for the sole purpose of drawing a record of administrative offence; arrested at 18:30 on 10/08/2019 and detained for 4 hours. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 08/10/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
6.	26871/20 16/04/2020	**Karim Rustemovich GIZATULLIN** 1996	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	18/10/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: arrested at 17:30 on 27/07/2019 and detained for about 8 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 18/10/2019 (appeal decision).	3,900
7.	26883/20 16/04/2020	**Aleksandr Vyacheslavovich DVURECHENSKIY** 1983	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	16/10/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: arrested at 17:30 on 27/07/2019 and detained for about 6 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 16/10/2019 (appeal decision).	3,900

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8.	26889/20 16/04/2020	**Anton Sergeyevich LAPSHIN** 1987	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	16/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: arrested at 17:40 on 27/07/2019 and detained for about 10 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 16/11/2019 (appeal decision).	3,900
9.	26897/20 16/04/2020	**Igor Leonidovich IVANOV** 1978	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	23/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: arrested at 16:40 on 27/07/2019 and detained for about 8 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 23/11/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
10.	29100/20 14/06/2020	**Dmitriy Alekseyevich KOVALEV** 2000	Gak Irina Vladimirovna Rostov-on-Don	fine of RUB 10,000	21/10/2019 Rostov Regional Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unlawful detention on 10/08/2019, issue raised on appeal, detention in excess of 3 hours: arrested at 15:00 on 10/08/2019 and at 20:00 escorted to the court; he was released at 20:30 on the same day; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Rostov-on-Don in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Rostov Regional Court 21/10/2019 (appeal decision).	3,900
11.	29237/20 14/06/2020	**Ilya Valeryevich MURADYAN** 1997	Gak Irina Vladimirovna Rostov-on-Don	fine of RUB 10,000	21/11/2019 Rostov Regional Court on	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention in excess of 3 hours for the purpose of drawing up a record of administrative arrest on 10/08/2019: arrested at 15:00 on 10/08/2019 and at 20:00 escorted to the court; he was released at 20:30 on the same day; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Rostov-on-Don in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Rostov Regional Court on 21/11/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
12.	29600/20 21/06/2020	**Aleksey Yuryevich DYDOCHKIN** 1989	Zakhvatov Dmitriy Igorevich Moscow	fine of RUB 20,000	06/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 10/08/2019 for the purpose of drawing up a record of administrative offence; arrested at 19:50 on 10/08/2019 and detained for more than 4 hours. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 20,000/ Moscow City Court on 06/11/2019 (appeal decision).	3,900
13.	37577/20 18/08/2020	**Maksim Sergeyevich STATSENKO** 1998	Memorial Human Rights Centre Moscow	fine of RUB 10,000	26/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 10/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: arrested at 18:20 on 10/08/2019 and released at 3:36 on 11/08/2019. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 26/11/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
14.	52302/20 31/10/2020	**Tatyana Aleksandrovna KOLOBAKINA** 2000	Solovyev Leonid Alekseyevich Moscow	fine of RUB 15,000	17/06/2020 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 03/02/2020 in Moscow in manifestation in support of the accused in "Novoye velichiye" case/ administrative fine of RUB 15,000/ Moscow City Court on 17/06/2020 (appeal decision).	3,900
15.	52305/20 31/10/2020	**Mikhail Alekseyevich AKSEL** 1996	Solovyev Leonid Alekseyevich Moscow	fine of RUB 10,000	16/06/2020 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 03/02/2020 in Moscow in manifestation in support of the accused in "Novoye velichiye" case/ administrative fine of RUB 10,000/ Moscow City Court on 16/06/2020 (appeal decision).	3,900
16.	52307/20 31/10/2020	**Andrey Vladimirovich OVCHINNIKOV** 1997	Solovyev Leonid Alekseyevich Moscow	fine of RUB 10,000	14/05/2020 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 03/02/2020 in Moscow in manifestation in support of the accused in "Novoye velichiye" case/ administrative fine of RUB 10,000/ Moscow City Court on 14/05/2020 (appeal decision).	3,900

[1] Plus any tax that may be chargeable to the applicants.